

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall prepare and submit a proposed order and serve notice of entry of order.

4. 9:00 AM CASE NUMBER: L25-05967

CASE NAME: BANK OF AMERICA N.A. VS. JOSE GUILLERMO CASILLAS VEGA SR

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

On 3/11/26, Plaintiff filed an amended Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

Defendant did not file an opposition to the Motion.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Set One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall prepare and submit a proposed order and serve notice of entry of order.

5. 9:00 AM CASE NUMBER: L25-06872

CASE NAME: CAPITAL ONE N.A. VS. CHRISTOPHER CUEVAS

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

On 3/11/26, Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," as Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

Defendant did not file an opposition to the Motion.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Set One of Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall prepare and submit a proposed order and serve notice of entry of order.